

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201509481	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 11/08/2015 4:30 PM	Location of Incident: Over the phone	18 Mo. SOL 5/8/2017	Precinct: 50
Date/Time CV Reported Mon, 11/09/2015 9:29 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/09/2015 9:29 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Rosemarie Saez	13977	948880	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Rosemarie Saez	Discourtesy: PO Rosemarie Saez acted discourteously toward § 87(2)(b)	A . Substantiated

Case Summary

§ 87(2)(b) filed this complaint on November 9, 2015 with the CCRB via phone. On November 8, 2015, at approximately 4:30 p.m. § 87(2)(b) called the 50th Precinct stationhouse in the Bronx to make a noise complaint about a barking dog in his neighborhood. § 87(2)(b) spoke with PO Rosemarie Saez over the telephone. § 87(2)(b) told PO Saez that he wanted officers sent to speak with the neighbor or to issue him a summons. PO Saez refused to help § 87(2)(b) with the noise complaint. § 87(2)(b) asked PO Saez for her name. PO Saez stated her name. § 87(2)(b) asked PO Saez to spell her name. PO Saez immediately hung up on § 87(2)(b) (**Allegation A**). § 87(2)(b) called back the precinct immediately after this occurred and was hung up on again.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) over the phone and during his interview. § 87(2)(b) chose to have his complaint investigated (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- The NYC Office of the Comptroller responded to a request noting that § 87(2)(b) has not filed a notice of claim regarding this incident (Board Review 03).

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) at the CCRB (Board Review 04).
- PO Saez has been a member of the service for five years and has no substantiated allegations. PO Saez has two prior allegations for force and offensive language § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Saez did not have any recollection of the interaction with § 87(2)(b). § 87(2)(b) obtained the subject officer's name when he spoke with her but did not know how to spell the name. § 87(2)(b) called the precinct the next day and spoke with PO Veras who told him how to spell PO Saez' name. The 50th Precinct tour 3 ARCS from the incident date reflects that PO Saez was working as the T/S operator (Board Review 06). PO Saez testified that she was working as the T/S operator on the incident date (Board Review 07).

Allegation A – Discourtesy: PO Rosemarie Saez acted discourteously toward § 87(2)(b)

§ 87(2)(b) testified that he called the 50th Precinct stationhouse directly to file a noise complaint about a neighbor's barking dog (Board Review 01). A female officer picked up the call and identified herself as officer Saez. § 87(2)(b) explained that he wanted officers to come speak with the neighbor or to issue him a summons. PO Saez told § 87(2)(b) that the police do not issue summonses for barking dogs. § 87(2)(b) disagreed and told PO Saez that he found out that the police can issue summons for noise violations, including barking dogs, from the DEP's website. § 87(2)(b) described his demeanor as "polite" but "agitated and frustrated" because his noise complaints have gone unresolved by the precinct despite numerous calls. PO Saez asked § 87(2)(b)

§ 87(2)(b) if he had an emergency. § 87(2)(b) told PO Saez that he did not have an emergency. PO Saez told § 87(2)(b) to call 911 if he had an emergency. § 87(2)(b) asked PO Saez for her name. PO Saez stated her name. § 87(2)(b) asked PO Saez how to spell her name. PO Saez immediately hung up the phone on § 87(2)(b). § 87(2)(b) called back the precinct using the same phone number he had dialed previously. § 87(2)(b) heard a clicking sound which made him think that someone had picked up the line and immediately hung up. The next day, § 87(2)(b) called the precinct and spoke with PO Veras who told him the likely spelling of PO Saez' name. § 87(2)(b) wanted to file a complaint against PO Saez. PO Veras told § 87(2)(b) how he could file a complaint with the CCRB against PO Saez. § 87(2)(b) was satisfied with being referred to the CCRB.

PO Saez testified that she did not have any recollection of this incident (Board Review 07). PO Saez was interviewed 12 days after the incident date. PO Saez was working on the incident date as the TS operator at the 50th Precinct stationhouse. As the T/S operator she would be responsible for dealing with noise complaint calls. PO Saez did not believe that barking dogs would be considered a noise complaint. The incident, as described by § 87(2)(b) was explained to PO Saez. This information did not prompt any recollection of the incident for PO Saez. PO Saez could not provide any estimate of how many calls she deals with as the T/S operator during a typical tour. There is no other PO Saez who would have been working on the T/S phone. PO Saez was not aware of any civilian personnel named "Saez" who would have been working on the T/S phone.

Patrol Guide Procedure 203-09 states that officers must "be courteous and respectful" in their contact with the public (Board Review 08). In PD V. Mulrooney (DCT 79865/04), a desk officer was found guilty of discourtesy when he hung up on a civilian over the phone after being asked to provide his name (Board Review 09).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

Squad: 8

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date